

# VCU313462 Trinidad, Tanya vs. BMW of North America, LLC

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-07-20

Motion: Defendant's Motion for Summary Judgment

Source URL: <https://www.tulare.courts.ca.gov/general-information/tentative-rulings>

Source SHA-256: bc5fb624b388286c0c7a274c1876bcf77f84797281b80f6a69342e145325f422

Re: Trinidad, Tanya vs. BMW of North America, LLC

Case No.: VCU313462

Date: July 20, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Defendant's Motion for Summary Judgment

Tentative Ruling: To deny the motion

Facts

On May 15, 2022, Plaintiff Tanya Trinidad ("Plaintiff") purchased a used 2019 X3 xDrive30i, VIN 5UXTR9C5XKLD95872 ("Subject Vehicle"), from BMW of Visalia, an independent dealer, located at 111 N Neely St., Visalia, CA 93291. (UMF No. 1.)

At the time of purchase, the Subject Vehicle had 32737 miles on the odometer. (UMF No. 2.)

Pursuant to the Sale Agreement, Plaintiff was to pay a downpayment of \$7,713.00, total financed payments of \$34,895.87, and a finance charge of \$6,141.25, for a total of \$41,037.12, over the course of the 72 month finance schedule. (UMF No. 3.)

The Subject Vehicle was originally sold with a 4-year/50,000-mile New Vehicle Limited Warranty. (UMF No. 4.) BMW NA issued the applicable New Vehicle Limited Warranty on May 09, 2019, prior to Plaintiff's purchase. (UMF No. 5.)

Title of Subject Vehicle was originally transferred to another consumer before being purchased by Plaintiff. (UMF No. 6.)

Plaintiff received the remaining balance of the New Vehicle Warranty. (UMF No. 7.)

On or around September 26, 2024, Plaintiff filed her Complaint alleging causes of action for violations of the Song Beverly Act and Breach of Implied and Express Warranty. (UMF No. 8.)

The Court notes here that the complaint alleges “Pursuant to Section 1792.22, subdivision (e) (2), of the California Civil Code, the Subject Vehicle was purchased as a certified pre-owned (“CPO”) with an accompanying BMW OF NORTH AMERICA, LLC’s new and full CPO warranty, and therefore constitutes a “new motor vehicle” vehicle under the Act. These causes of action arise out of warranty and repair obligations of BMW OF NORTH AMERICA, LLC in connection with a vehicle that Plaintiff purchased and for which BMW OF NORTH AMERICA, LLC issued a written warranty.” (Complaint ¶18.)

The only named defendant is BMW of North America, LLC. (UMF No. 9.)

Plaintiff adds that Defendant admits it is a distributor. For purposes of CPO certification, Defendant is a self-professed distributor. (AUMF No. 1.) Further, that Defendant is likewise a retail seller for purposes of C.C.P. § 1795.5 (AUMF No. 2.)

Further, that that the Certified Pre Owned warranty issued by BMW NA was effective at the inception of Plaintiff’s obtaining of the Subject Vehicle, runs in conjunction with the New Vehicle Limited Warranty, and remains active throughout Plaintiff’s ownership with unlimited mileage and a defined expiration date. (AUMF No. 3.)

Further, that BMW is a manufacturer. (AUMF No. 4.)

Additionally, that Defendant’s Warranty Booklet, on page 9, Defendant writes: THE DURATION OF ANY IMPLIED WARRANTIES, INCLUDING THE IMPLIED WARRANTY OF MERCHANTABILITY, IS LIMITED TO THE DURATION OF THE EXPRESS WARRANTIES HEREIN. (AUMF No. 5.)

Further, that The Subject Vehicle was brought in for repairs to an authorized BMW dealership less than three months after purchase, on August 1, 2022, for check engine light concerns, among other things. (AUMF No. 6.)

Authority and Analysis

Summary Judgment

A party may move for summary judgment in any action or proceeding if it is contended the action has no merit or that there is no defense to the action or proceeding. (Code Civ. Proc. § 437c(a).) “The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.)

To prevail, the evidence submitted must show there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc. § 437c(c).) The motion cannot succeed unless the evidence leaves no room for conflicting inferences as to material facts; the court has no power to weigh one inference against another or against other evidence. (Murillo v. Rite Stuff Food Inc. (1998) 65 Cal.App.4th 833, 841.) In determining whether the facts give rise to a triable issue of material fact, “[a]ll doubts as to whether any material, triable, issues of fact exist are to be resolved in favor of the party opposing summary judgment...” (Gold v. Weissman (2004) 114 Cal.App.4th 1195, 1198-99.) “In other words, the facts alleged in the evidence of the party opposing summary judgment and the reasonable inferences there from must be accepted as true.” (Jackson v. County of Los Angeles (1997) 60 Cal.App.4th 171, 179.) However, if adjudication is otherwise proper the motion “may not be denied on grounds of credibility,” except when a material fact is the witness’s state of mind and “that fact is sought to be established solely by the [witness’s] affirmation thereof.” (Code Civ. Proc. § 437c(e).)

Once the moving party has met their burden, the burden shifts to the opposing party “to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto.” (Code Civ. Proc. § 437c(p)(1).) “[T]here is no obligation on the opposing party... to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element... necessary to sustain a judgment in his favor.” (Consumer Cause, Inc. v. SmileCare (2001) 91 Cal.App.4th 454, 468.)

“The pleadings play a key role in a summary judgment motion. The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues and to frame the outer measure of materiality in a summary judgment proceeding.” (Hutton v. Fidelity National Title Co. (2013) 213 Cal.App.4th 486, 493, quotations and citations omitted.) “Accordingly, the burden of a defendant moving for summary judgment only requires that he or she negate plaintiff’s theories of liability as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings.” (Id.)

Song Beverly

Defendant moves for summary judgment or adjudication as to the (1) first cause of action for violation of Song-Beverly Act - breach of express warranty, (2) second cause of action for violation of Song-Beverly Act - breach of implied warranty under Civil Code section 1792, and (3) third cause of action for violation of the Song-Beverly Act section 1793.2(b) pursuant to the holding in Rodriguez v. FCA US, LLC (2024) 17 Cal.5th 189.

In Rodriguez, the Supreme Court held that “a motor vehicle purchased with an unexpired manufacturer’s new car warranty does not qualify as a ‘motor vehicle sold with a manufacturer’s new car warranty’ under section 1793.22, subdivision (e)(2)’s definition of ‘new motor vehicle’ unless the new car warranty was issued with the sale.” (Id. at 196.) The Supreme Court found that “it would be anomalous to construe ‘other motor vehicle sold with a manufacturer’s new car warranty’ (§ 1793.22, subd. (e)(2)) to include any used car sold by a distributor or retailer with a preexisting, unexpired manufacturer’s warranty.” (Id. at 202.)

Here, however, in contrast to Rodriguez, the complaint alleges “the Subject Vehicle was purchased as a certified pre-owned (“CPO”) with an accompanying BMW OF NORTH AMERICA, LLC’s new and full CPO warranty” and while Plaintiff received the balance of a new vehicle warranty, Plaintiff also provides evidence Plaintiff obtained a Certified Pre-Owned Warranty issued by BMW at the time of the purchase, which remains active. (Complaint ¶8, UMF No. 7, AUMF No. 3.)

As such, the Court does not find application of Rodriguez to bar the claims here, given that Plaintiff has presented evidence that a CPO warranty was issued at the time of the purchase of the used vehicle.

The Court notes here that Plaintiff’s opposition, in addition to arguing Rodriguez does not apply due to the issuance of the CPO warranty with the purchase by Plaintiff, argues that Plaintiff’s three causes of action are viable under Civil Code section 1795.5.

Civil Code section 1795.5 states:

Notwithstanding the provisions of subdivision (a) of Section 1791 defining consumer goods to mean “new” goods, the obligation of a distributor or retail seller of used consumer goods in a sale in which an express warranty is given shall be the same as that imposed on manufacturers under this chapter except:

(a) It shall be the obligation of the distributor or retail seller making express warranties with respect to used consumer goods (and not the original manufacturer, distributor, or retail seller making express warranties with respect to such goods when new) to maintain sufficient service and repair facilities within this state to carry out the terms of such express warranties.

(b) The provisions of Section 1793.5 shall not apply to the sale of used consumer goods sold in this state.

(c) The duration of the implied warranty of merchantability and where present the implied warranty of fitness with respect to used consumer goods sold in this state, where the sale is accompanied by an express warranty, shall be coextensive in duration with an express warranty which accompanies the consumer goods, provided the duration of the express warranty is reasonable, but in no event shall such implied warranties have a duration of less than 30 days nor more than three months following the sale of used consumer goods to a retail buyer. Where no duration for an express warranty is stated with respect to such goods, or parts thereof, the duration of the implied warranties shall be the maximum period prescribed above.

(d) The obligation of the distributor or retail seller who makes express warranties with respect to used goods that are sold in this state, shall extend to the sale of all such used goods, regardless of when such goods may have been manufactured.

The Court will not adjudicate the validity or viability of a section 1795.5 claim presented in opposition to the summary judgment motion for this first time. However, if Plaintiff's seek to present this theory at trial, Plaintiff's may file a motion for leave to amend the complaint.

Therefore, the Court denies the motion.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.